

(d) to be presumed innocent until proven guilty according to law in a fair and public hearing by an independent and impartial tribunal.

There is an important distinction between persuasive burdens of proof and evidentiary burdens:

Persuasive burdens of proof (sometimes called legal or ultimate burdens) have three main features. They apply at the end of a case, they never shift in the sense that it is known from the start who bears the burden, and the trier of fact must find against the burdenholder in a borderline case. Normally the burden is on the Crown to prove to a standard of beyond a reasonable doubt. Sometimes the persuasive burden of an issue is placed by Parliament or the courts on the accused to prove on a balance of probabilities. This is called a reverse onus.

There is considerable confusion amongst writers and judges as to the meaning of "evidentiary burdens". This term usually refers to the burden of pointing to evidence to put a legal issue into play (*R. v. Schwartz*, [1988] 2 S.C.R. 443, 45 C.C.C. (3d) 97, 66 C.R. (3d) 251 at 466 [S.C.R.] per Dickson C.J.). Sometimes this is referred to as giving a matter an "air of reality" (an issue we will return to when we discuss defences), providing an evidentiary foundation or a tactical burden. It can be discharged through cross-examination of opposing witnesses or by calling witnesses. It can shift during the ebb and flow of a trial. Used in this sense it has nothing to do with the burden of proof. However, the term "evidentiary burden" is also sometimes used to describe a reverse onus which merely calls upon the accused to provide some evidence to doubt the fact or conclusion in question (see the discussion in "Doubt Mountain and the Presumption of Innocence", p. 108).

Oakes concerned the constitutionality of a persuasive burden on the accused:

R. v. OAKES

[1986] 1 S.C.R. 103, 50 C.R. (3d) 1, 24 C.C.C. (3d) 321,
1986 CarswellOnt 95, 1986 CarswellOnt 1001

DICKSON C.J.C. (CHOUINARD, LAMER, WILSON and LE DAIN JJ. concurring): —

This appeal concerns the constitutionality of s. 8 of the *Narcotic Control Act*, R.S.C. 1970, c. N-1. The section provides, in brief, that if the court finds the accused in possession of a narcotic, he is presumed to be in possession for the purpose of trafficking. Unless the accused can establish the contrary, he must be convicted of trafficking. The Ontario Court of Appeal held that this provision constitutes a "reverse onus" clause and is unconstitutional because it violates one of the core values of our criminal justice system, the presumption of innocence, now entrenched in s. 11 (d) of the *Canadian Charter of Rights and Freedoms*. The Crown has appealed.

....

The respondent, David Edwin Oakes, was charged with unlawful possession of a narcotic for the purpose of trafficking, contrary to s. 4(2) of the *Narcotic Control Act*. He elected trial by magistrate without a jury. At trial, the Crown adduced evidence to establish that Mr. Oakes was found in possession of eight one gram vials of *cannabis* resin in the form of hashish oil. Upon a further search conducted at the police station, \$619.45 was located. Mr. Oakes told the police that he had bought ten vials of hashish oil for \$150 for his own use, and that the \$619.45 was from a workers' compensation cheque. He elected not to call evidence as to possession of the narcotic. Pursuant to the procedural provisions of s. 8 of the *Narcotic Control Act*, the trial judge proceeded to make a finding that it was beyond a reasonable doubt that Mr. Oakes was in possession of the narcotic.

Following this finding, Mr. Oakes brought a motion to challenge the constitutional validity of s. 8 of the *Narcotic Control Act*, which he maintained imposes a burden on an accused to prove that he or she was not in possession for the purpose of trafficking. He argued that s. 8 violates the presumption of innocence contained in s. 11(d) of the *Charter*.

[The trial judge found s. 8 to be inoperative as in conflict with s. 11(d). He afforded the Crown an opportunity to adduce further evidence and the Crown declined. The trial judge acquitted on the offence charged and found the accused guilty of possession only.]

....

To interpret the meaning of s. 11(d), it is important to adopt a purposive approach. As this court stated in *R. v. Big M Drug Mart Ltd.*, [1985] 1 S.C.R. 295 at p. 344:

The meaning of a right or freedom guaranteed by the *Charter* was to be ascertained by an analysis of the *purpose* of such a guarantee; it was to be understood, in other words, in the light of the interests it was meant to protect.

In my view this analysis is to be undertaken, and the purpose of the right or freedom in question is to be sought by reference to the character and the larger objects of the *Charter* itself, to the language chosen to articulate the specific right or freedom, to the historical origins of the concepts enshrined, and where applicable to the meaning and purpose of the other specific rights and freedoms.

To identify the underlying purpose of the *Charter* right in question, therefore, it is important to begin by understanding the cardinal values it embodies.

The presumption of innocence is a hallowed principle lying at the very heart of criminal law. Although protected expressly in s. 11(d) of the *Charter*, the presumption of innocence is referable and integral to the general protection of life, liberty and security of the person contained in s. 7 of the *Charter* (see *Reference re s. 94(2) of the Motor Vehicle Act*, December 17, 1985, unreported, per Lamer J.). The presumption of innocence protects the fundamental liberty and human dignity of any and every person accused by the State of criminal conduct. An individual charged with a criminal offence faces grave social and personal consequences, including potential loss of physical liberty, subjection to social stigma and ostracism from the community, as well as other social,

psychological and economic harms. In light of the gravity of these consequences, the presumption of innocence is crucial. It ensures that until the State proves an accused's guilt beyond all reasonable doubt, he or she is innocent. This is essential in a society committed to fairness and social justice. The presumption of innocence confirms our faith in humankind; it reflects our belief that individuals are decent and law-abiding members of the community until proven otherwise.

The presumption of innocence has enjoyed longstanding recognition at common law. In the leading case, *Woolmington v. Director of Public Prosecutions*, [1935] A.C. 462 (H.L.), Viscount Sankey wrote at pp. 481-482:

Throughout the web of the English Criminal Law one golden thread is always to be seen, that it is the duty of the prosecution to prove the prisoner's guilt subject to what I have already said as to the defence of insanity and subject also to any statutory exception. If, at the end of and on the whole of the case, there is a reasonable doubt, created by the evidence given by either the prosecution or the prisoner, as to whether the prisoner killed the deceased with a malicious intention, the prosecution has not made out the case and the prisoner is entitled to an acquittal. No matter what the charge or where the trial, the principle that the prosecution must prove the guilt of the prisoner is part of the common law of England and no attempt to whittle it down can be entertained.

Subsequent Canadian cases have cited the *Woolmington* principle with approval (see, for example, *Manchuk v. The King*, [1938] S.C.R. 341, at p. 349; *R. v. City of Sault Ste. Marie*, [1978] 2 S.C.R. 1299, at p. 1316).

Further evidence of the widespread acceptance of the principle of the presumption of innocence is its inclusion in the major international human rights documents. Article 11(1) of the *Universal Declaration of Human Rights*, adopted December 10, 1948 by the General Assembly of the United Nations, provides:

Art. 11(1) Everyone charged with a penal offence has the right to be presumed innocent until proved guilty according to law in a public trial at which he has had all the guarantees necessary for his defence.

In the *International Covenant on Civil and Political Rights*, 1966, art. 14(2) states:

Art. 14(2) Everyone charged with a criminal offence shall have the right to be presumed innocent until proved guilty according to law.

Canada acceded to this Covenant, and the Optional Protocol which sets up machinery for implementing the Covenant, on May 19, 1976. Both came into effect on August 19, 1976.

In light of the above, the right to be presumed innocent until proven guilty requires that s. 11(d) have, at a minimum, the following content. First, an individual must be proven guilty beyond a reasonable doubt. Second, it is the State which must bear the burden of proof. As Mr. Justice Lamer stated in *Dubois v. The Queen* (November 21, 1985, unreported) at p. 6:

Section 11 (*d*) imposes upon the Crown the burden of proving the accused's guilt beyond reasonable doubt as well as that of making out the case against the accused before he or she need respond, either by testifying or calling other evidence.

Third, criminal prosecutions must be carried out in accordance with lawful procedures and fairness. The latter part of s. 11(*d*), which requires the proof of guilt "according to law in a fair and public hearing by an independent and impartial tribunal", underlines the importance of this procedural requirement.

....

The *Woolmington* case was decided in the context of a legal system with no constitutionally entrenched human rights document. In Canada, we have tempered parliamentary supremacy by entrenching important rights and freedoms in the Constitution. Viscount Sankey's statutory exception proviso is clearly not applicable in this context and would subvert the very purpose of the entrenchment of the presumption of innocence in the *Charter*. . . . Section 8 of the *Narcotic Control Act* is not rendered constitutionally valid simply by virtue of the fact that it is a statutory provision.

....

In general one must, I think, conclude that a provision which requires an accused to disprove on a balance of probabilities the existence of a presumed fact, which is an important element of the offence in question, violates the presumption of innocence in s. 11(*d*). If an accused bears the burden of disproving on a balance of probabilities an essential element of an offence, it would be possible for a conviction to occur despite the existence of a reasonable doubt. This would arise if the accused adduced sufficient evidence to raise a reasonable doubt as to his or her innocence but did not convince the jury on a balance of probabilities that the presumed fact was untrue.

The fact that the standard is only the civil one does not render a reverse onus clause constitutional. As Sir Rupert Cross commented in the *Rede Lectures*, "The Golden Thread of the English Criminal Law: The Burden of Proof", delivered in 1976 at the University of Toronto, at pp. 11-13:

It is sometimes said that exceptions to the *Woolmington* rule are acceptable because, whenever the burden of proof on any issue in a criminal case is borne by the accused, he only has to satisfy the jury on the balance of probabilities, whereas on issues on which the Crown bears the burden of proof the jury must be satisfied beyond a reasonable doubt. . . . The fact that the standard is lower when the accused bears the burden of proof than it is when the burden of proof is borne by the prosecution is no answer to my objection to the existence of exceptions to the *Woolmington* rule as it does not alter the fact that a jury or bench of Magistrates may have to convict the accused although they are far from sure of his guilt.

As we have seen, the potential for a rational connection between the basic fact and the presumed fact to justify a reverse onus provision has been elaborated in some of the cases discussed above and is now known as the "rational connection test". In the context of s. 11(*d*), however, the following question arises: if we apply the rational connection test to the consideration of

whether s. 11(d) has been violated, are we adequately protecting the constitutional principle of the presumption of innocence? As Professors MacKay and Cromwell point out in their article "Oakes: A Bold Initiative" (1983), 32 C.R. (3d) 221, at p. 233:

The rational connection test approves a provision that *forces* the trier to infer a fact that may be simply rationally, connected to the proved fact. Why does it follow that such a provision does not offend the constitutional right to be proved guilty beyond a reasonable doubt?

A basic fact may rationally tend to prove a presumed fact, but not prove its existence beyond a reasonable doubt. An accused person could thereby be convicted despite the presence of a reasonable doubt. This would violate the presumption of innocence.

I should add that this questioning of the constitutionality of the "rational connection test" as a guide to interpreting s. 11(d) does not minimize its importance. The appropriate stage for invoking the rational connection test, however, is under s. 1 of the *Charter*. This consideration did not arise under the *Canadian Bill of Rights* because of the absence of an equivalent to s. 1. At the Court of Appeal level in the present case, Martin J.A. sought to combine the analysis of s. 11(d) and s. 1 to overcome the limitations of the *Canadian Bill of Rights* jurisprudence. To my mind, it is highly desirable to keep s. 1 and s. 11(d) analytically distinct. Separating the analysis into two components is consistent with the approach this court has taken to the *Charter* to date (see *R. v. Big M Drug Mart Ltd.*, *supra*; *Hunter v. Southam Inc.*, [1984] 2 S.C.R. 145; *Law Society of Upper Canada v. Skapinker*, [1984] 1 S.C.R. 357).

To return to s. 8 of the *Narcotic Control Act*, I am in no doubt whatsoever that it violates s. 11(d) of the *Charter* by requiring the accused to prove on a balance of probabilities that he was not in possession of the narcotic for the purpose of trafficking. Mr. Oakes is compelled by s. 8 to prove he is *not* guilty of the offence of trafficking. He is thus denied his right to be presumed innocent and subjected to the potential penalty of life imprisonment unless he can rebut the presumption. This is radically and fundamentally inconsistent with the societal values of human dignity and liberty which we espouse, and is directly contrary to the presumption of innocence enshrined in s. 11(d). Let us turn now to s. 1 of the *Charter*.

Subsequently, the Supreme Court has determined that any persuasive burden placed on the accused, whether this relates to an element of the offence or a defence, violates s. 11(d) and the only issue is whether it is saved under s. 1.

Sometimes Parliament resorts to the evidentiary device of a rebuttable presumption to assist the burdenholder. This is usually achieved by a provision that "in the absence of evidence to the contrary" something is presumed. In such cases where the accused points to credible evidence to the contrary the presumption no longer exists. This type of burden is sometimes also confusingly referred to as an evidentiary burden. It has a

(ii) Reasonable doubt**R. v. LIFCHUS**

[1997] 3 S.C.R. 320, 9 C.R. (5th) 1, 118 C.C.C. (3d) 1,
1997 CarswellMan 392, 1997 CarswellMan 393

The accused was charged with fraud. The trial judge told the jury in her charge on the burden of proof that she used the words "proof beyond a reasonable doubt" . . . in their ordinary, natural every day sense", and that the words "doubt" and "reasonable" are "ordinary, every day words that . . . you understand". The accused was convicted of fraud. On appeal, he contended that the trial judge had erred in instructing the jury on the meaning of the expression "proof beyond a reasonable doubt". The Court of Appeal allowed the appeal and ordered a new trial. The Supreme Court dismissed the Crown's appeal.

CORY J. (LAMER C.J., SOPINKA, McLAHLIN, IACOBucci and MAJOR JJ. concurring): —

. . . .

The phrase "beyond a reasonable doubt", is composed of words which are commonly used in everyday speech. Yet, these words have a specific meaning in the legal context. This special meaning of the words "reasonable doubt" may not correspond precisely to the meaning ordinarily attributed to them. In criminal proceedings, where the liberty of the subject is at stake, it is of fundamental importance that jurors fully understand the nature of the burden of proof that the law requires them to apply. An explanation of the meaning of proof beyond a reasonable doubt is an essential element of the instructions that must be given to a jury. That a definition is necessary can be readily deduced from the frequency with which juries ask for guidance with regard to its meaning. It is therefore essential that the trial judge provide the jury with an explanation of the expression.

. . . .

Perhaps a brief summary of what the definition should and should not contain may be helpful. It should be explained that:

- the standard of proof beyond a reasonable doubt is inextricably intertwined with that principle fundamental to all criminal trials, the presumption of innocence;
- the burden of proof rests on the prosecution throughout the trial and never shifts to the accused;
- a reasonable doubt is not a doubt based upon sympathy or prejudice;
- rather, it is based upon reason and common sense;
- it is logically connected to the evidence or absence of evidence;²¹

²¹ The court observed elsewhere in the decision that "certain doubts, although reasonable, are simply

- it does not involve proof to an absolute certainty; it is not proof beyond *any* doubt nor is it an imaginary or frivolous doubt; and
- more is required than proof that the accused is probably guilty — a jury which concludes only that the accused is probably guilty must acquit.

On the other hand, certain references to the required standard of proof should be avoided. For example:

- describing the term “reasonable doubt” as an ordinary expression which has no special meaning in the criminal law context;
- inviting jurors to apply to the task before them the same standard of proof that they apply to important, or even the most important, decisions in their own lives;
- equating proof “beyond a reasonable doubt” to proof “to a moral certainty”;
- qualifying the word “doubt” with adjectives other than “reasonable”, such as “serious”, “substantial” or “haunting”, which may mislead the jury; and
- instructing jurors that they may convict if they are “sure” that the accused is guilty, before providing them with a proper definition as to the meaning of the words “beyond a reasonable doubt”.

A charge which is consistent with the principles set out in these reasons will suffice regardless of the particular words used by the trial judge. Nevertheless, it may . . . be useful to set out a “model charge” which could provide the necessary instructions as to the meaning of the phrase beyond a reasonable doubt.

Suggested Charge

Instructions pertaining to the requisite standard of proof in a criminal trial of proof beyond a reasonable doubt might be given along these lines:

The accused enters these proceedings presumed to be innocent. That presumption of innocence remains throughout the case until such time as the Crown has on the evidence put before you satisfied you beyond a reasonable doubt that the accused is guilty.

What does the expression “beyond a reasonable doubt” mean?

The term “beyond a reasonable doubt” has been used for a very long time and is a part of our history and traditions of justice. It is so engrained in our criminal law that some think it needs no explanation, yet something must be said regarding its meaning.

incapable of articulation. For instance, there may be something about a person’s demeanor in the witness box which will lead a juror to conclude that the witness is not credible. It may be that the juror is unable to point to the precise aspect of the witness’s demeanor which was found to be suspicious, and as a result cannot articulate either to himself or others exactly why the witness should not be believed. A juror should not be made to feel that the overall, perhaps intangible, effect of a witness’s demeanor cannot be taken into consideration is the assessment of credibility.” (para. 29)

A reasonable doubt is not an imaginary or frivolous doubt. It must not be based upon sympathy or prejudice. Rather, it is based on reason and common sense. It is logically derived from the evidence or absence of evidence.

Even if you believe the accused is probably guilty or likely guilty, that is not sufficient. In those circumstances you must give the benefit of the doubt to the accused and acquit because the Crown has failed to satisfy you of the guilt of the accused beyond a reasonable doubt.

On the other hand you must remember that it is virtually impossible to prove anything to an absolute certainty and the Crown is not required to do so. Such a standard of proof is impossibly high.

In short if, based upon the evidence before the court, you are sure that the accused committed the offence you should convict since this demonstrates that you are satisfied of his guilt beyond a reasonable doubt.

This is not a magic incantation that needs to be repeated word for word. It is nothing more than a suggested form that would not be faulted if it were used

....

Further, it is possible that an error in the instructions as to the standard of proof may not constitute a reversible error. It was observed in *R. v. W. (D.)*, [1991] 1 S.C.R. 742, at p. 758, that the verdict ought not be disturbed "if the charge, when read as a whole, makes it clear that the jury could not have been under any misapprehension as to the correct burden and standard of proof to apply". On the other hand, if the charge as a whole gives rise to the reasonable likelihood that the jury misapprehended the standard of proof, then as a general rule the verdict will have to be set aside and a new trial directed.

R. v. STARR

[2000] 2 S.C.R. 144, 36 C.R. (5th) 1, 147 C.C.C. (3d) 449,
2000 CarswellMan 449, 2000 CarswellMan 450

The accused had been convicted of two counts of first degree murder. The majority of the Court decided that the reasonable doubt instruction given in the case fell prey to many of the same difficulties outlined in *Lifchus*, and likely misled the jury as to the content of the criminal standard of proof. In allowing the accused's appeal they gave further advice.

IACOBUCCI J. (MAJOR, BINNIE, ARBOUR and LEBEL JJ. concurring): —

....

In the present case, the trial judge did refer to the Crown's onus and to the presumption of innocence, and he stated that the appellant should receive the benefit of any reasonable doubt. The error in the charge is that the jury was not told *how a reasonable doubt is to be defined*. As was emphasized repeatedly in *Lifchus* and again in *Bisson*, a jury *must* be instructed that the standard of

proof in a criminal trial is higher than the probability standard used in making everyday decisions and in civil trials. Indeed, it is this very requirement to go beyond probability that meshes the standard of proof in criminal cases with the presumption of innocence and the Crown's onus. However, as Cory J. explained in these earlier decisions, it is generally inappropriate to define the meaning of the term "reasonable doubt" through examples from daily life, through the use of synonyms, or through analogy to moral choices. The criminal standard of proof has a special significance unique to the legal process. It is an exacting standard of proof rarely encountered in everyday life, and there is no universally intelligible illustration of the concept, such as the scales of justice with respect to the balance of probabilities standard. Unlike absolute certainty or the balance of probabilities, reasonable doubt is not an easily quantifiable standard. It cannot be measured or described by analogy. It must be explained. However, precisely because it is not quantifiable, it is difficult to explain.

In my view, an effective way to define the reasonable doubt standard for a jury is to explain that it falls much closer to absolute certainty than to proof on a balance of probabilities. As stated in *Lifchus*, a trial judge is required to explain that something less than absolute certainty is required, and that something more than probable guilt is required, in order for the jury to convict. Both of these alternative standards are fairly and easily comprehensible. It will be of great assistance for a jury if the trial judge situates the reasonable doubt standard appropriately between these two standards. The additional instructions to the jury set out in *Lifchus* as to the meaning and appropriate manner of determining the existence of a reasonable doubt serve to define the space between absolute certainty and proof beyond a reasonable doubt. In this regard, I am in agreement with Twaddle J.A. in the court below, when he said, at p. 177:

If standards of proof were marked on a measure, proof "beyond reasonable doubt" would lie much closer to "absolute certainty" than to "a balance of probabilities". Just as a judge has a duty to instruct the jury that absolute certainty is not required, he or she has a duty, in my view, to instruct the jury that the criminal standard is more than a probability. The words he or she uses to convey this idea are of no significance, but the idea itself must be conveyed.

See further Patrick Healy, "Direction and Guidance on Reasonable Doubt in the Charge to the Jury" (2001) 6 Can. Crim. L.R. 161.

In 1991 the Supreme Court handed down a decision, *R. v. W. (D.)*, [1991] 1 S.C.R. 742, 63 C.C.C. (3d) 397, 3 C.R. (4th) 302 that was intended to give guidance to judges on how to explain to a jury the process of considering whether they were left with a reasonable doubt or not. Subsequently that court has recognized various criticisms of the *W. (D.)* approach and held that it should not be applied as a "magical incantation".

R. v. S. (J.H.)

2008 SCC 30, 2008 CarswellNS 270, 2008 CarswellNS 271, 57 C.R. (6th) 79, [2008] 2 S.C.R. 152, 231 C.C.C. (3d) 302

A stepfather was charged with sexual assault after the complainant alleged that he had sexually abused her over a number of years, starting when she was approximately four years old. She twice complained to her mother who did not believe her. When the complainant was 15 she went to the police. The accused denied all the allegations and suggested that they were falsely made after he threatened to send her to a Catholic school because of her uncontrollable behaviour. The issue at trial before judge and jury was whether the alleged events had ever happened. The complainant and the accused were the principal witnesses. The trial judge charged the jury on the credibility of the witnesses, instructing them that they had to consider all the evidence and that the trial was not a choice between two competing versions of events. The defence raised no objection to the charge. The jury returned a verdict of guilty.

A majority of the Nova Scotia Court of Appeal set aside the conviction and ordered a new trial. The trial judge had insufficiently explained the principles of reasonable doubt as they applied to credibility. While the *W. (D.)* phrasing was not a magical incantation the charge had failed to express the second *W. (D.)* principle that disbelief in the accused's testimony does not amount to proof of his or her guilt beyond a reasonable doubt. The dissenting judge found that the charge was sufficient.

BINNIE J. (for seven justices): —

8 A series of decisions over at least the past 20 years has affirmed and reaffirmed the proposition that where credibility is a central issue in a jury trial, the judge must explain the relationship between the assessment of credibility and the Crown's ultimate burden to prove the guilt of the accused to the criminal standard. A general instruction on reasonable doubt without adverting to its relationship to the credibility (or lack of credibility) of the witnesses leaves open too great a possibility of confusion or misunderstanding. The so-called *W. (D.)* instruction has long roots: *R. v. Challice* (1979), 45 C.C.C. (2d) 546 (Ont. C.A.), at p. 556; *R. v. Chan* (1989), 52 C.C.C. (3d) 184, (Alta. C.A.), at p. 186; *R. v. Morin*, [1988] 2 S.C.R. 345, at p. 362; *R. v. H. (C.W.)* (1991), 68 C.C.C. (3d) 146 (B.C.C.A.), at p. 155; *R. v. MacKenzie*, [1993] 1 S.C.R. 212, at pp. 219 and 239; *R. v. Levasseur*, [1994] 3 S.C.R. 518 (upholding Fish J.A.'s dissent reported at (1994), 89 C.C.C. (3d) 508 (Que. C.A.), at p. 534). *W. (D.)* has been cited by Canadian courts at all levels in no fewer than 3,743 subsequent reported cases. It has proven to be a fertile source of appellate review. For a recent application, see *R. v. C.L.Y.*, [2008] 1 S.C.R. 5, 2008 SCC 2.

9 The passage from *W. (D.)* at issue in this case, as in so many others, is found at pp. 757-58, where Cory J. explained:

Ideally, appropriate instructions on the issue of credibility should be given, not only during the main charge, but on any recharge. A trial judge might well instruct the jury on the question of credibility along these lines:

First, if you believe the evidence of the accused, obviously you must acquit. Second, if you do not believe the testimony of the accused but you are left in reasonable doubt by it, you must acquit. Third, even if you are not left in doubt by the evidence of the accused, you must ask yourself whether, on the basis of the evidence which you do accept, you are convinced beyond a reasonable doubt by that evidence of the guilt of the accused.

If that formula were followed, the oft repeated error which appears in the recharge in this case would be avoided. The requirement that the Crown prove the guilt of the accused beyond a reasonable doubt is fundamental in our system of criminal law. Every effort should be made to avoid mistakes in charging the jury on this basic principle.

Nonetheless, the failure to use such language is not fatal if the charge, when read as a whole, makes it clear that the jury could not have been under any misapprehension as to the correct burden and standard of proof to apply...

Essentially, *W. (D.)* simply unpacks for the benefit of the lay jury what reasonable doubt means in the context of evaluating conflicting testimonial accounts. It alerts the jury to the "credibility contest" error. It teaches that trial judges are required to impress on the jury that the burden never shifts from the Crown to prove every element of the offence beyond a reasonable doubt.

10 The precise formulation of the *W. (D.)* questions has been criticized. As to the first question, the jury may believe inculpatory elements of the statements of an accused but reject the exculpatory explanation. In *R. v. Latimer*, [2001] 1 S.C.R. 3, 2001 SCC 1, the accused did not testify, but his description of the killing of his daughter was put into evidence by way of statements to the police. His description of the event itself was obviously believed. The exculpatory explanation did not amount to a defence at law. He was convicted. The principle that a jury may believe some, none, or all of the testimony of any witness, including that of an accused, suggests to some critics that the first *W. (D.)* question is something of an oversimplification.

11 As to the second question, some jurors may wonder how, if they believe none of the evidence of the accused, such rejected evidence may nevertheless of itself raise a reasonable doubt. Of course, some elements of the evidence of an accused may raise a reasonable doubt, even though the bulk of it is rejected. Equally, the jury may simply conclude that they do not know whether to believe the accused's testimony or not. In either circumstance the accused is entitled to an acquittal.

12 The third question, again, is taken by some critics as failing to contemplate a jury's acceptance of inculpatory bits of the evidence of an accused but not the

exculpatory elements. In light of these possible sources of difficulty, Wood J.A. in *H. (C.W.)* suggested an additional instruction:

I would add one more instruction in such cases, which logically ought to be second in the order, namely: "If, after a careful consideration of all the evidence, you are unable to decide whom to believe, you must acquit". [p. 155]

13 In short the *W. (D.)* questions should not have attributed to them a level of sanctity or immutable perfection that their author never claimed for them. *W. (D.)*'s message that it must be made crystal clear to the jury that the burden never shifts from the Crown to prove every element of the offence beyond a reasonable doubt is of fundamental importance but its application should not result in a triumph of form over substance. In *R. v. S. (W.D.)*, [1994] 3 S.C.R. 521, Cory J. reiterated that the *W. (D.)* instructions need not be given "word for word as some magic incantation" (p. 533). In *R. v. Avetysan*, [2000] 2 S.C.R. 745, 2000 SCC 56, Major J. for the majority pointed out that in any case where credibility is important "[t]he question is really whether, in substance, the trial judge's instructions left the jury with the impression that it had to choose between the two versions of events" (para. 19). The main point is that lack of credibility on the part of the accused does not equate to proof of his or her guilt beyond a reasonable doubt.

14 In the present case Oland J.A. agreed that the trial judge did not "call upon the jury to simply decide which of the complainant or [the accused] it believed" (para. 19). Nevertheless, in her view:

The charge only instructed that probable guilt was not enough to meet the standard of proof beyond a reasonable doubt, that the appellant was to be given the benefit of the doubt, and they did not have to accept or reject all of the testimony of any witness including his, and that they were to consider all of the evidence. Nowhere did it provide any guidance as to how, in the event they were uncertain or unable to resolve the issue of credibility, they were to proceed with their deliberations. *The charge failed to direct that if the jury did not believe the testimony of the accused but were left in a reasonable doubt by that evidence, they must acquit.* [Emphasis added; para. 20.]

In my view, with respect, the reasoning of the majority brushes uncomfortably close to the "magic incantation" error. At the end of the day, reading the charge as a whole, I believe the instruction to this jury satisfied the ultimate test formulated by Cory J. in *W. (D.)* as being whether "the jury could not have been under any misapprehension as to the correct burden and standard of proof to apply" (p. 758).

15 Here the trial judge explained that any reasonable doubt must be resolved in favour of the accused. She also explained that even if they did not accept all of the accused's testimony, they could still accept some of it. She also explained to the jury that they should not see their task as that of deciding between two versions of events. She told them that they could not decide the case simply by choosing between the evidence of the complainant and that of the accused. She

reminded them, in that context, that they must consider all of the evidence when determining reasonable doubt. She stated:

You do not decide whether something happened simply by comparing one version of events with another, or choosing one of them. You have to consider all the evidence and decide whether you have been satisfied beyond a reasonable doubt that the events that form the basis of the crime charged, in fact, took place. [A.R., at p. 54.]

...

Again, you do not decide whether something happened simply by comparing one version of events with the other, or by choosing one of them. You have to consider all of the evidence and decide whether you have been satisfied beyond a reasonable doubt that the events that form the basis of the crimes charges, in fact, took place. [A.R., at p. 55.]

16 In my view, the trial judge got across the point of the second *W. (D.)* question without leaving any realistic possibility of misunderstanding. As stated, she told the jury:

It is for the Crown counsel to prove beyond a reasonable doubt that the events alleged in fact occurred. It is not for [the accused] to prove that these events never happened. If you have a reasonable doubt whether the events alleged ever took place, you *must* find him not guilty. [Emphasis added; A.R., at p. 54.]

17 There was much discussion at the hearing about defence counsel's failure to object. In my view, he correctly ascertained that the jury had been adequately instructed on the relationship between the assessment of credibility and the ultimate determination of guilt beyond a reasonable doubt. Before the recharge was given he told the trial judge he would "feel more comfortable if simply the wording that was read previously was re-read to the jury again" (A.R., at p. 77). He discharged his duty to the respondent.

Appeal allowed; conviction restored.

Should the Supreme Court have expressly and clearly abandoned the *W. (D.)* approach? It has been responsible for many, many prolix appeals and orders of new trials. The main problem is that the second question is potentially confusing and/or too generous to accused. See especially the late Jack Gibson, "*R. v. W.D. Revisited: Is Step Two a Misdirection?*" (2003) 11 C.R. (6th) 323. Justice Binnie might have mentioned the remark of McLachlin J. dissenting in *R. v. S. (W.D.)*, [1994] 3 S.C.R. 521, 93 C.C.C. (3d) 1, 34 C.R. (4th) 1:

Certainly if the jury rejected (as opposed to being merely undecided about) all of the evidence of the accused, it is difficult to see how that very evidence, having been rejected, could raise a reasonable doubt.

Trial judges are at least now free to reject the complexity of *W. (D.)* as long as they make sure that the jury is warned of the Crown's burden of proof, that it is not just a choice between competing versions and that they